



SPONSOR: Sen. Poore & Rep. Phillips
Reps. Gray, Hilovsky

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 125

AN ACT TO AMEND TITLE 24 OF THE DELAWARE CODE RELATING TO PROFESSIONS AND OCCUPATIONS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Title 24, Chapter 38 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and by redesignating accordingly:

§ 3806. Qualifications of applicants.

(a) An applicant who is applying for licensure under this chapter shall have the following qualifications:

(1) ~~A~~ For applicants who graduated before January 1, 2024, a minimum of a baccalaureate degree from a United States (U.S.) regionally accredited college or university. Applicants who have obtained their education outside the U.S. and its territories must have their academic degree or degrees validated as equivalent to the baccalaureate or master's degree conferred by a regionally accredited college or university in the U.S.; and U.S.

(2) For applicants who graduated on or after January 1, 2024, a minimum of a master's degree from a United States (U.S.) regionally accredited college or university. Applicants who have obtained their education outside the U.S. and its territories must have their academic degree or degrees validated as equivalent to the master's degree conferred by a regionally accredited college or university in the U.S.

~~(2)(3)~~ A major course of study in human nutrition, nutrition education, food and nutrition, dietetics, or food systems ~~management; and management.~~

~~(3)(4)~~ Submitted proof to the Board of the completion of a supervised practice in dietetics/nutrition which consists of a documented supervised practice experience component in dietetics practice, of not less than 900 hours under the supervision of a registered dietitian, a state's licensed healthcare practitioner or an individual with a doctoral degree conferred by a U.S. regionally accredited college or university with a major course study in human nutrition, nutrition education, food and nutrition, dietetics, or food systems management. Supervised practice experience must be completed in the U.S. or its territories. Supervisors who obtained their doctoral degree outside the U.S. and its territories must have their degree validated as equivalent to the doctoral degree conferred by a U.S. regionally accredited college or ~~university; and~~ university.

23 (4)(5) Appear at a time and place designated by the Board and submit to examination as to the person's
24 qualification for registration as a L.D.N.

25 ~~(f) The Board may waive the requirements of this section if the applicant presents with satisfactory evidence of the~~
26 ~~following in their application for licensure to practice dietetics and provided that the application is filed not later than June~~
27 ~~21, 2010: Successful completion of a baccalaureate or higher degree in nutrition from an institution of higher education that~~
28 ~~is approved by a regional accreditation agency that is recognized by the Council on Postsecondary Accreditation and~~
29 ~~Documentation and at least 10 years or greater work experience in the field of nutrition. This individual would be subject to~~
30 ~~maintain continuing education as outlined in this chapter.~~

SYNOPSIS

This Act updates the Board of Dietetics/Nutrition enabling act, requiring applicants to obtain a minimum of a master's degree to obtain a license. This change would make Delaware consistent with the Commission on Dietetic Registration (CDR), the credentialing agency of the American Dietetic Association. Beginning on January 1, 2024, CDR required a minimum of a master's degree in order to become registered. Under the current law, holders of a CDR registration are considered to automatically meet the qualifications for licensure in Delaware, and applicants who are certified by the Board for Certification of Nutrition Specialists must also acquire a minimum of a master's degree. This Act ensures Delaware is consistent with the current national standards for licensure and registration as a Dietitian or Nutritionist. Finally, the Act eliminates an outdated application provision.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.

Author: Senator Poore